

1 ENGROSSED SENATE
2 BILL NO. 2062

By: Pugh of the Senate

3 and

4 Osburn of the House

5
6 [prisons and reformatories - delivery - self-
7 reporting - actions - responsibility - reimbursement
8 - effective date]
9

10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 1. AMENDATORY 57 O.S. 2021, Section 95, is
12 amended to read as follows:

13 Section 95. A. Any Except as provided in subsection F of this
14 section, any person convicted of an offense against the laws of this
15 state and sentenced to imprisonment that is not to be served in a
16 county jail shall be transported by the sheriff of the county where
17 the person is sentenced, or transported by a designated
18 representative of the sheriff, to the Department of Corrections at
19 the Lexington Assessment and Reception Center or other location
20 designated by the Director of the Department of Corrections.

21 B. Any Except as provided in subsection F of this section, any
22 person convicted of an offense against the laws of this state and
23 sentenced to imprisonment that is not to be served in a county jail
24 and who is not housed in a county jail shall be transported by the

1 detention center, or transported by a designated representative of
2 the detention center, to the Department of Corrections at the
3 Lexington Assessment and Reception Center or other location
4 designated by the Director of the Department of Corrections.

5 C. The sheriff shall deliver the person to the Department at
6 such center together with:

7 1. A certified copy of the judgment and sentence from the court
8 ordering such imprisonment, unless the judgment and sentence
9 previously has been sent electronically by an authorized clerk of
10 the court;

11 2. A certificate setting forth the number of days served in the
12 county jail after the pronouncement of judgment and rendering of
13 sentence for the offenses committed;

14 3. A copy of any medical, dental, or mental health records of
15 the defendant for conditions reviewed or treated while in the
16 custody of the sheriff;

17 4. Any medication or medical or dental device prescribed for
18 the defendant while in the custody of the sheriff or for a
19 preexisting condition; and

20 5. A copy of the presentence investigation report, if a report
21 was prepared.

22 D. The Department of Corrections shall give the sheriff a
23 receipt for each person received into the custody of the Department.
24

1 The receipt shall be filed by the sheriff in the office of the clerk
2 of the court where the sentence was made.

3 E. The Department of Corrections shall reimburse the
4 transporting agency as follows:

5 1. Mileage from the county sheriff's office to the appropriate
6 reception center and back to the county sheriff's office; and

7 2. Hourly wage reimbursement for the transporting officer for
8 the hours of transport travel and time spent at the reception center
9 based on the transporting officer's normal hourly wage.

10 Reimbursement shall not exceed Thirty Dollars (\$30.00) an hour per
11 officer. Documentation of the officer's hourly wage shall accompany
12 all reimbursement requests to the Department.

13 The Department of Corrections shall have the authority to
14 promulgate rules and forms for the reimbursement procedures provided
15 in this section.

16 The Department of Corrections shall submit a quarterly report to
17 the Chair of the Senate Appropriations Committee and Chair of the
18 House of Representatives Appropriations and Budget Committee.

19 F. Notwithstanding subsections A and B of this section, if the
20 sentencing court orders self-reporting whereby a defendant who poses
21 a low risk to public safety, as determined by factors including, but
22 not limited to, the nature of the committed offense, criminal
23 history, and the defendant's ties to the community, such defendant
24 shall be allowed to self-report to a designated correctional

1 facility for commencement of the imprisonment sentence and bypass
2 detention in a county jail and initial reception processing. The
3 Department of Corrections shall receive the defendant upon arrival,
4 process any required documentation, and conduct initial assessments
5 at the facility or through an alternative method approved by the
6 Director of the Department of Corrections. The sheriff or detention
7 center personnel shall not be responsible for transportation in such
8 cases and shall not be eligible for reimbursement as provided in
9 subsection E of this section.

10 SECTION 2. This act shall become effective November 1, 2026.

11 Passed the Senate the 26th day of March, 2026.

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13 _____
14 Presiding Officer of the Senate

15 Passed the House of Representatives the ____ day of _____,
16 2026.

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19 Presiding Officer of the House
20 of Representatives
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